

The fact that appellant may assert his privacy claim as to only a small fraction of the materials of his Presidency is plainly relevant in judging the reasonableness of the screening process contemplated by the Act, but this of course does not, without more, require rejection of his privacy argument. *Id.*, at 359. Although the Act requires that the regulations promulgated by the Administrator under § 104 (a) take into account appellant's legally and constitutionally based rights and privileges, presumably including his privacy rights, § 104 (a)(5), and also take into account the need to return to appellant his private materials, § 104 (a)(7),²³ the identity and separation of these purely private matters can be achieved, as all parties concede, only by screening all of the materials.

Appellant contends that the Act therefore is tantamount to a general warrant authorizing search and seizure of all of his Presidential "papers and effects." Such "blanket authority," appellant contends, is precisely the kind of abuse that the Fourth Amendment was intended to prevent, for "the real evil aimed at by the Fourth Amendment is the search itself, that invasion of a man's privacy which consists [in] rummaging about among his effects to secure evidence against him." Brief for Appellant 148, quoting *United States v. Poller*, 43 F. 2d 911, 914 (CA2 1930). Thus, his brief continues, at 150-151:

"[Appellant's] most private thoughts and communications, both written and spoken, will be exposed to and reviewed by a host of persons whom he does not know and

²³ The Solicitor General implied at oral argument that the requirement of the guidelines directing the Administrator to consider the need to return to appellant "for his sole custody and use . . . materials which are not [Watergate related] . . . and are not otherwise of general historical significance," § 104 (a)(7), is further qualified by the requirement under §§ 102 (b) and 104 (a)(5), that the regulations promulgated by the Administrator take into account the need to protect appellant's rights, defenses, or privileges. Tr. of Oral Arg. 37-38.